₹2.50 lakh per month[5]. They are also paid sumptuary allowance and provided with free accommodation and other facilities like medical, car, telephone, etc.

The retired chief justice and judges are entitled to 50 per cent of their last drawn salary as monthly pension.

TENURE AND REMOVAL

Tenure of Judges The Constitution has not fixed the tenure of a judge of the Supreme Court. However, it makes the following three provisions in this regard:

1. He/she holds office until he/she attains the age of 65 years. Any question regarding his/her age is to be determined by such authority and in such manner as provided by Parliament.

2. He/she can resign from his/her office by writing to the President.

3. He/she can be removed from his/her office by the President on the recommendation of the Parliament.

Removal of Judges A judge of the Supreme Court can be removed from his/her Office by an order of the President. The President can issue the removal order only after an address by Parliament has been presented to him/her in the same session for such removal. The address must be supported by a special majority of each House of Parliament (ie, a majority of the total membership of that House and a majority of not less than two-thirds of the members of that House present and voting). The grounds of removal are two—proved misbehaviour or incapacity.

The Judges Enquiry Act (1968) regulates the procedure relating to the removal of a judge of the Supreme Court by the process of impeachment[6]:

1. A removal motion signed by 100 members (in the case of Lok Sabha) or 50 members (in the case of Rajya Sabha) is to be given to the Speaker/Chairman.

2. The Speaker/Chairman may admit the motion or refuse to admit it.

3. If it is admitted, then the Speaker/Chairman is to constitute a three-member committee to investigate into the charges.

4. The committee should consist of (a) the chief justice or a judge of the Supreme Court, (b) a chief justice of a high court, and (c) a distinguished jurist.

5. If the committee finds the judge to be guilty of misbehaviour or suffering from an incapacity, the House can take up the consideration of the motion.

6. After the motion is passed by each House of Parliament by special majority, an address is presented to the President for removal of the judge.

7. Finally, the President passes an order removing the judge.

It is interesting to know that no judge of the Supreme Court has been impeached so far. The first case of impeachment is that of Justice V. Ramaswami of the Supreme Court (1991–1993). Though the enquiry